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perform the duties and exercise the powers which the Constitution has conferred on them.” *Ibid.*

The Court rejected the first argument. It found “no difference of opinion as to [the] origin” of the House of Commons’ subpoena power:

“[T]he two Houses of Parliament were each courts of judicature originally, which, though divested by usage, and by statute, probably, of many of their judicial functions, have yet retained so much of that power as enables them, like any other court, to punish for a contempt of these privileges and authority that the power rests.” *Id.*, at 184.

Even after the division of Parliament into two houses, “[t]o the Commons was left the power of impeachment, and, perhaps, others of a judicial character, and jointly they exercised, until a very recent period, the power of passing bills of attainder for treason and other high crimes which are in their nature punishment for crime declared judicially by the High Court of Parliament.” *Ibid.* By contrast, the House of Representatives “is in no sense a court, . . . exercises no functions derived from its once having been a part of the highest court of the realm,” and has no judicial functions beyond “punishing its own members and determining their election.” *Id.*, at 189. The Court thus rejected the notion that Congress inherited from Parliament an implied power to issue legislative subpoenas.

The Court did not reach a conclusion on the second theory that a legislative subpoena power was necessary for Congress to carry out its legislative duties. But it observed that, based on British judicial opinions, not “much aid [is] given to the doctrine, that this power exists as one necessary to enable either House of Congress to exercise successfully their function of legislation.” *Ibid.* The Court referred to a collection of 18th- and 19th-century English decisions grounding the Parliamentary subpoena power in that body’s judicial origins. *Id.*, at 184–189 (citing *Burdett v. Abbott*,

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104 Eng. Rep. 501 (K. B. 1811); *Brass Crosby's Case*, 95 Eng. Rep. 1005 (C. P. 1771); *Stockdale v. Hansard*, 112 Eng. Rep. 1112 (K. B. 1839); and *Kielley v. Carson*, 13 Eng. Rep. 225 (P. C. 1841)). The Court placed particular emphasis on *Kielley*, in which the Privy Council held that the Legislative Assembly of Newfoundland lacked a power to punish for contempt. The Privy Council expressly stated that the House of Commons could punish for contempt

“not because it is a representative body with legislative functions, but by virtue of ancient usage and prescription . . . which forms a part of the common law of the land, and according to which the High Court of Parliament before its division, and the Houses of Lords and Commons since, are invested with many privileges, that of punishment for contempt being one.” *Kilbourn*, 103 U.S., at 188–189.

This Court also noted that the Privy Council “discusse[d] at length the necessity of this power in a legislative body for its protection, and to enable it to discharge its law-making functions, and decide[d] against the proposition.” *Id.*, at 189. Although the Court did not have occasion to decide whether the legislative subpoena in that case was necessary to the exercise of Congress’ legislative powers, its discussion strongly suggests the subpoena was unconstitutional.⁴

The Court instead based its decision on the fact that the subpoena at issue “ma[de] inquiry into the private affairs of the citizen.” *Id.*, at 190. Such a power, the Court reasoned, “is judicial and not legislative,” *id.*, at 193, and “no judicial power is vested in the Congress or either branch

⁴ According to Justice Miller’s private letters, “a majority of the Court, including Miller himself, were of the opinion that neither House nor Senate had power to punish for contempt witnesses who refused to testify before investigating committees.” T. Taylor, *Grand Inquest: The Story of Congressional Investigations* 49 (1955). Only Justice Miller’s desire to “‘decid[e] no more than is necessary’” caused the Court to avoid the broader question. *Ibid.*

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of it, save in the cases” of punishing Members, compelling Members’ attendance, judging elections and qualifications, and impeachment and trial, *id.*, at 192–193. Notably, the Court found no indication that the House “avowed to impeach the secretary,” or else “the whole aspect of the case would have been changed.” *Id.*, at 193. Even though the Court decided *Kilbourn* narrowly, it clearly entertained substantial doubts about the constitutionality of legislative subpoenas for private documents.

D

Nearly half a century later, in *McGrain v. Daugherty*, the Court reached the question reserved in *Kilbourn*—whether Congress has the power to issue legislative subpoenas. It rejected *Kilbourn*’s reasoning and upheld the power to issue legislative subpoenas as long as they were relevant to a legislative power. Although *McGrain* involved oral testimony, the Court has since extended this test to subpoenas for private documents. The Committees rely on *McGrain*, but this line of cases misunderstands both the original meaning of Article I and the historical practice underlying it.

1

Shortly before Attorney General Harry Daugherty resigned in 1924, the Senate opened an investigation into his “‘alleged failure’” to prosecute monopolists, the protagonists of the Teapot Dome scandal, and “‘many others.’” *McGrain*, 273 U. S., at 151. The investigating Committee issued subpoenas to Daugherty’s brother, Mally, who refused to comply and was arrested in Ohio for failure to testify. *Id.*, at 152–154. Mally petitioned for a writ of habeas corpus, and the District Court discharged him, based largely on *Kilbourn*. *Ex parte Daugherty*, 299 F. 620 (SD Ohio 1924). The Deputy Sergeant at Arms who arrested Mally directly appealed to this Court, which reversed.

The Court concluded that, “[i]n actual legislative practice[,] power to secure needed information by [investigating

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and compelling testimony] has long been treated as an attribute of the power to legislate.” *McGrain*, 273 U.S., at 161. The Court specifically found that “[i]t was so regarded in the British Parliament and in the Colonial legislatures before the American Revolution” and that “a like view has prevailed and been carried into effect in both houses of Congress and in most of the state legislatures.” *Ibid.* But the authority cited by the Court did not support that proposition. The Court cited the 1792 investigation of St. Clair’s defeat, in which it appears no subpoena was issued, *supra*, at 877–878, and the 1859 Senate investigation of John Brown’s raid on Harper’s Ferry, which led to an impassioned debate. 273 U.S., at 162–164. Thus, for the reasons explained above, the examples relied on in *McGrain* are materially different from issuing a legislative subpoena for private, nonofficial documents. See *supra*, at 877–878, 880–881.⁵

The Court acknowledged *Kilbourn*, but erroneously distinguished its discussion regarding the constitutionality of legislative subpoenas as immaterial dicta. *McGrain*, *supra*, at 170–171 (quoting *Kilbourn*, *supra*, at 189). The Court concluded that “the two houses of Congress, in their separate relations, possess not only such powers as are expressly granted to them by the Constitution, but such auxiliary powers as are necessary and appropriate to make the express powers effective.” *McGrain*, *supra*, at 173.

Instead of relying on *Kilbourn*’s analysis, *McGrain* developed a test that rested heavily on functional considerations. The Court wrote that “[a] legislative body cannot legislate wisely or effectively in the absence of information respecting the conditions which the legislation is intended to affect or change.” 273 U.S., at 175. Because “mere requests for such information often are unavailing, and also that informa-

⁵The Court also cited decisions between 1858 and 1913 from state courts and a Canadian court, none of which are persuasive evidence about the original meaning of the U.S. Constitution. *McGrain*, 273 U.S., at 165–167.

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tion which is volunteered is not always accurate or complete,” “some means of compulsion are essential to obtain what is needed.” *Ibid.*

The Court thus concluded that Congress could issue legislative subpoenas, provided that “the purpose for which the witness’s testimony was sought was to obtain information in aid of the legislative function.” *Id.*, at 176. The Court has since applied this test to subpoenas for papers without any further analysis of the text or history of the Constitution. See *Eastland v. United States Servicemen’s Fund*, 421 U.S. 491, 504–505 (1975). The majority today modifies that test for cases involving the President, but it leaves the core of the power untouched. *Ante*, at 869–871.

2

The opinion in *McGrain* lacks any foundation in text or history with respect to subpoenas for private, nonofficial documents. It fails to recognize that Congress, unlike Parliament, is not supreme. It does not cite any specific precedent for issuing legislative subpoenas for private documents from 18th-century colonial or state practice. And it identifies no founding-era legislative subpoenas for private documents.⁶

Since *McGrain*, the Court has pared back Congress’ authority to compel testimony and documents. It has held that certain convictions of witnesses for contempt of Congress violated the Fifth Amendment. See *Watkins v. United States*, 354 U.S. 178 (1957) (Due Process Clause);

⁶The Court further observed that Congress has long exercised the power to hold nonmembers in contempt for reasons other than failure to comply with a legislative subpoena. *McGrain, supra*, at 168–169. The earliest case it cited, *Anderson v. Dunn*, 6 Wheat. 204 (1821), relied on arguments about Congress’ power of self-protection, *id.*, at 226–227. Members of Congress defending the use of contempt for these other purposes made similar arguments about self-protection. 5 Annals of Cong. 181–182 (1795) (Rep. W. Smith); *id.*, at 189 (Rep. I. Smith). But the failure to respond to a subpoena does not pose a fundamental threat to Congress’ ability to exercise its powers.

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Quinn v. United States, 349 U. S. 155 (1955) (Self-Incrimination Clause); see also *Barenblatt v. United States*, 360 U. S. 109, 153–154 (1959) (Black, J., dissenting). It has also affirmed the reversal of a conviction on the ground that the Committee lacked authority to issue the subpoena. See *United States v. Rumely*, 345 U. S. 41 (1953). And today, it creates a new four-part, nonexhaustive test for cases involving the President. *Ante*, at 869–871. Rather than continue our trend of trying to compensate for *McGrain*, I would simply decline to apply it in these cases because it is readily apparent that the Committees have no constitutional authority to subpoena private, nonofficial documents.

III

If the Committees wish to investigate alleged wrongdoing by the President and obtain documents from him, the Constitution provides Congress with a special mechanism for doing so: impeachment.⁷

It is often acknowledged, “if only half-heartedly honored,” that one of the motivating principles of our Constitution is the separation of powers. *Association of American Railroads*, 575 U. S., at 74 (THOMAS, J., concurring in judgment). The Framers recognized that there are three forms of governmental power: legislative, executive, and judicial. The Framers also created three branches: Congress, the President, and the Judiciary. The three powers largely align with the three branches. To a limited extent, however, the Constitution contains “a partial intermixture of those departments for special purposes.” *The Federalist* No. 66, p. 401 (C. Rossiter ed. 1961) (A. Hamilton). One of those special purposes is the system of checks and balances, and impeachment is one of those checks.

⁷ I express no view on whether there are any limitations on the impeachment power that would prevent the House from subpoenaing the documents at issue.

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The Constitution grants the House “the sole Power of Impeachment,” Art. I, § 2, cl. 5, and it specifies that the President may be impeached for “Treason, Bribery, or other high Crimes and Misdemeanors,” Art. II, § 4. The founding generation understood impeachment as a check on Presidential abuses. In response to charges that impeachment “confounds legislative and judiciary authorities in the same body,” Alexander Hamilton called it “an essential check in the hands of [Congress] upon the encroachments of the executive.” The Federalist No. 66, at 401–402. And, in the Virginia ratifying convention, James Madison identified impeachment as a check on Presidential abuse of the treaty power. 10 Documentary History 1397.

B

The power to impeach includes a power to investigate and demand documents. Impeachments in the States often involved an investigation. In 1781, the Virginia Legislature began what Edmund Randolph called an “impeachment” of then-Governor Thomas Jefferson. P. Hoffer & N. Hull, *Impeachment in America, 1635–1805*, p. 85 (1984). This “most publicized and far-reaching impeachment inquiry for incompetence” included an “‘inquir[y] into the conduct of the executive of this state for the last two months.’” *Ibid.* The Legislatures of New Jersey, *id.*, at 92, and Pennsylvania, *id.*, at 93–95, similarly investigated officials through impeachment proceedings.

Reinforcing this understanding, the founding generation repeatedly referred to impeachment as an “inquest.” See 4 Debates on the Constitution 44 (J. Elliot ed. 1854) (speech of A. Maclaine) (referring to the House as “the grand inquest of the Union at large”); The Federalist No. 65, at 397 (Hamilton) (referring to the House as “a method of NATIONAL INQUEST”); 2 Records of the Federal Convention 154 (M. Farrand ed. 1911) (record from the Committee of Detail stating that “[t]he House of Representatives shall be the grand Inquest of this Nation; and all Impeachments shall be made by

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them”); see also Mass. Const., ch. 1, § 3, Art. VI (1780) (referring to the Massachusetts House of Representatives as “the Grand Inquest of this Commonwealth”). At the time, an “inquest” referred to an “[i]nquiry, especially that made by a Jury” or “the Jury itself.” N. Bailey, *Universal Etymological English Dictionary* (22d ed. 1770).

The Founders were also aware of the contemporaneous impeachment of Warren Hastings in England, in which the House of Commons heard witnesses before voting to impeach. P. Marshall, *The Impeachment of Warren Hastings* 40–41, 58 (1965). In the first impeachment under the new Constitution, Congressmen cited the Hastings impeachment as precedent for several points, including the power to take testimony before impeaching. 7 *Annals of Cong.* 456 (1797) (Rep. Rutledge); *id.*, at 459 (Rep. Sitgreaves); *id.*, at 460 (Rep. Gallatin).

Other evidence from the 1790s confirms that the power to investigate includes the power to demand documents. When the House of Representatives sought documents related to the Jay Treaty from President George Washington, he refused to provide them on the ground that the House had no legislative powers relating to the ratification of treaties. 5 *Annals of Cong.* 760–762 (1796). But he carefully noted that “[i]t does not occur that the inspection of the papers asked for can be relative to any purpose under the cognizance of the House of Representatives, except that of an impeachment; which the resolution has not expressed.” *Id.*, at 760. In other words, he understood that the House can demand documents as part of its power to impeach.

This Court has also long recognized the power of the House to demand documents. Even as it questioned the power to issue legislative subpoenas, the Court in *Kilbourn* acknowledged the ability to “compel the attendance of witnesses, and their answer to proper questions” when “the question of . . . impeachment is before either body acting in its appropriate sphere on that subject.” 103 U. S., at 190.

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I express no view today on the boundaries of the power to demand documents in connection with impeachment proceedings. But the power of impeachment provides the House with authority to investigate and hold accountable Presidents who commit high crimes or misdemeanors. That is the proper path by which the Committees should pursue their demands.

IV

For nearly two centuries, until the 1970s, Congress never attempted to subpoena documents to investigate wrongdoing by the President outside the context of impeachment. Congress investigated Presidents without opening impeachment proceedings. See, *e. g.*, 2 Hinds § 1596, at 1043–1045 (President James Buchanan). But it never issued a subpoena for private, nonofficial documents as part of those non-impeachment inquiries. Perhaps most strikingly, one proposed request for official documents from the President was amended after objection so that it “‘requested’” them rather than “‘direct[ing]’” the President to provide them. 3 *id.*, § 1895, at 193.

Insisting that the House proceed through its impeachment power is not a mere formality. Unlike contempt, which is governed by the rules of each chamber, impeachment and removal constitutionally requires a majority vote by the House and a two-thirds vote by the Senate. Art. I, § 2, cl. 5; § 3, cl. 6. In addition, Congress has long thought it necessary to provide certain procedural safeguards to officials facing impeachment and removal. See, *e. g.*, 3 Annals of Cong. 903 (1793) (Rep. W. Smith). Finally, initiating impeachment proceedings signals to the public the gravity of seeking the removal of a constitutional officer at the head of a coordinate branch. 940 F. 3d 710, 776 (CA DC 2019) (Rao, J., dissenting).

* * *

Congress’ legislative powers do not authorize it to engage in a nationwide inquisition with whatever resources it

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chooses to appropriate for itself. The majority's solution—a nonexhaustive four-factor test of uncertain origin—is better than nothing. But the power that Congress seeks to exercise here has even less basis in the Constitution than the majority supposes. I would reverse in full because the power to subpoena private, nonofficial documents is not a necessary implication of Congress' legislative powers. If Congress wishes to obtain these documents, it should proceed through the impeachment power. Accordingly, I respectfully dissent.

JUSTICE ALITO, dissenting.

JUSTICE THOMAS makes a valuable argument about the constitutionality of congressional subpoenas for a President's personal documents. In these cases, however, I would assume for the sake of argument that such subpoenas are not categorically barred. Nevertheless, legislative subpoenas for a President's personal documents are inherently suspicious. Such documents are seldom of any special value in considering potential legislation, and subpoenas for such documents can easily be used for improper non-legislative purposes. Accordingly, courts must be very sensitive to separation of powers issues when they are asked to approve the enforcement of such subpoenas.

In many cases, disputes about subpoenas for Presidential documents are fought without judicial involvement. If Congress attempts to obtain such documents by subpoenaing a President directly, those two heavyweight institutions can use their considerable weapons to settle the matter. See *ante*, at 861 (opinion of the Court) ("Congress and the President maintained this tradition of negotiation and compromise—without the involvement of this Court—until the present dispute"). But when Congress issues such a subpoena to a third party, Congress must surely appreciate that the Judiciary may be pulled into the dispute, and Congress should not expect that the courts will allow the subpoena to be enforced without seriously examining its legitimacy.

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Whenever such a subpoena comes before a court, Congress should be required to make more than a perfunctory showing that it is seeking the documents for a legitimate legislative purpose and not for the purpose of exposing supposed Presidential wrongdoing. See *ante*, at 862–863. The House can inquire about possible Presidential wrongdoing pursuant to its impeachment power, see *ante*, at 887–890 (THOMAS, J., dissenting), but the Committees do not defend these subpoenas as ancillary to that power.

Instead, they claim that the subpoenas were issued to gather information that is relevant to legislative issues, but there is disturbing evidence of an improper law enforcement purpose. See 940 F. 3d 710, 767–771 (CA DC 2019) (Rao, J., dissenting). In addition, the sheer volume of documents sought calls out for explanation. See 943 F. 3d 627, 676–681 (CA 2 2019) (Livingston, J., concurring in part and dissenting in part).

The Court recognizes that the decisions below did not give adequate consideration to separation of powers concerns. Therefore, after setting out a non-exhaustive list of considerations for the lower courts to take into account, *ante*, at 869–871, the Court vacates the judgments of the Courts of Appeals and sends the cases back for reconsideration. I agree that the lower courts erred and that these cases must be remanded, but I do not think that the considerations outlined by the Court can be properly satisfied unless the House is required to show more than it has put forward to date.

Specifically, the House should provide a description of the type of legislation being considered, and while great specificity is not necessary, the description should be sufficient to permit a court to assess whether the particular records sought are of any special importance. The House should also spell out its constitutional authority to enact the type of legislation that it is contemplating, and it should justify the scope of the subpoenas in relation to the articulated legislative needs. In addition, it should explain why the subpoe-

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naed information, as opposed to information available from other sources, is needed. Unless the House is required to make a showing along these lines, I would hold that enforcement of the subpoenas cannot be ordered. Because I find the terms of the Court's remand inadequate, I must respectfully dissent.

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Syllabus

McGIRT v. OKLAHOMA

CERTIORARI TO THE COURT OF CRIMINAL APPEALS OF
OKLAHOMA

No. 18–9526. Argued May 11, 2020—Decided July 9, 2020

The Major Crimes Act (MCA) provides that, within “the Indian country,” “[a]ny Indian who commits” certain enumerated offenses “shall be subject to the same law and penalties as all other persons committing any of [those] offenses, within the exclusive jurisdiction of the United States.” 18 U. S. C. § 1153(a). “Indian country” includes “all land within the limits of any Indian reservation under the jurisdiction of the United States Government.” § 1151. Petitioner Jimcy McGirt was convicted by an Oklahoma state court of three serious sexual offenses. He unsuccessfully argued in state postconviction proceedings that the State lacked jurisdiction to prosecute him because he is an enrolled member of the Seminole Nation and his crimes took place on the Creek Reservation. He seeks a new trial, which, he contends, must take place in federal court.

Held: For MCA purposes, land reserved for the Creek Nation since the 19th century remains “Indian country.” Pp. 899–938.

(a) Congress established a reservation for the Creek Nation. An 1833 Treaty fixed borders for a “permanent home to the whole Creek Nation of Indians,” 7 Stat. 418, and promised that the United States would “grant a patent, in fee simple, to the Creek nation of Indians for the [assigned] land” to continue “so long as they shall exist as a nation, and continue to occupy the country hereby assigned to them,” *id.*, at 419. The patent formally issued in 1852.

Though the early treaties did not refer to the Creek lands as a “reservation,” similar language in treaties from the same era has been held sufficient to create a reservation, see, *e. g.*, *Menominee Tribe v. United States*, 391 U. S. 404, 405, and later Acts of Congress—referring to the “Creek reservation”—leave no room for doubt, see, *e. g.*, 17 Stat. 626. In addition, an 1856 Treaty promised that “no portion” of Creek lands “would ever be embraced or included within, or annexed to, any Territory or State,” 11 Stat. 700, and that the Creeks would have the “unrestricted right of self-government,” with “full jurisdiction” over enrolled Tribe members and their property, *id.*, at 704. Pp. 899–902.

(b) Congress has since broken more than a few promises to the Tribe. Nevertheless, the Creek Reservation persists today. Pp. 902–924.

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(1) Once a federal reservation is established, only Congress can diminish or disestablish it. Doing so requires a clear expression of congressional intent. Pp. 902–904.

(2) Oklahoma claims that Congress ended the Creek Reservation during the so-called “allotment era”—a period when Congress sought to pressure many tribes to abandon their communal lifestyles and parcel their lands into smaller lots owned by individual tribal members. Missing from the allotment-era agreement with the Creek, see 31 Stat. 862–864, however, is any statute evincing anything like the “present and total surrender of all tribal interests” in the affected lands. And this Court has already rejected the argument that allotments automatically ended reservations. Pp. 904–908.

(3) Oklahoma points to other ways Congress intruded on the Creeks’ promised right to self-governance during the allotment era, including abolishing the Creeks’ tribal courts, 30 Stat. 504–505, and requiring Presidential approval for certain tribal ordinances, 31 Stat. 872. But these laws fall short of eliminating all tribal interest in the contested lands. Pp. 909–913.

(4) Oklahoma ultimately claims that historical practice and demographics are enough by themselves to prove disestablishment. This Court has consulted contemporaneous usages, customs, and practices to the extent they shed light on the meaning of ambiguous statutory terms, but Oklahoma points to no ambiguous language in any of the relevant statutes that could plausibly be read as an act of cession. Such extra-textual considerations are of “‘limited interpretive value,’” *Nebraska v. Parker*, 577 U.S. 481, 493, and the “least compelling” form of evidence, *South Dakota v. Yankton Sioux Tribe*, 522 U.S. 329, 356. In the end, Oklahoma resorts to the State’s long historical practice of prosecuting Indians in state court for serious crimes on the contested lands, various statements made during the allotment era, and the speedy and persistent movement of white settlers into the area. But these supply little help with the law’s meaning and much potential for mischief. Pp. 913–924.

(c) In the alternative, Oklahoma contends that Congress never established a reservation but instead created a “dependent Indian community.” To hold that the Creek never had a reservation would require willful blindness to the statutory language and a belief that the land patent the Creek received somehow made their tribal sovereignty easier to divest. Congress established a reservation, not a dependent Indian community, for the Creek Nation. Pp. 924–927.

(d) Even assuming that the Creek land is a reservation, Oklahoma argues that the MCA has never applied in eastern Oklahoma. It claims that the Oklahoma Enabling Act, which transferred all nonfederal cases

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pending in the territorial courts to Oklahoma's state courts, made the State's courts the successors to the federal territorial courts' sweeping authority to try Indians for crimes committed on reservations. That argument, however, rests on state prosecutorial practices that defy the MCA, rather than on the law's plain terms. Pp. 927–932.

(e) Finally, Oklahoma warns of the potential consequences that will follow a ruling against it, such as unsettling an untold number of convictions and frustrating the State's ability to prosecute crimes in the future. This Court is aware of the potential for cost and conflict around jurisdictional boundaries. But Oklahoma and its tribes have proven time and again that they can work successfully together as partners, and Congress remains free to supplement its statutory directions about the lands in question at any time. Pp. 932–937.

Reversed.

GORSUCH, J., delivered the opinion of the Court, in which GINSBURG, BREYER, SOTOMAYOR, and KAGAN, JJ., joined. ROBERTS, C. J., filed a dissenting opinion, in which ALITO and KAVANAUGH, JJ., joined, and in which THOMAS, J., joined except as to footnote 9, *post*, p. 938. THOMAS, J., filed a dissenting opinion, *post*, p. 973.

Ian Heath Gershengorn argued the cause for petitioner. With him on the briefs was *Zachary C. Schauf*.

Riyaz A. Kanji argued the cause for Muscogee (Creek) Nation as *amicus curiae* urging reversal. With him on the brief were *David A. Giampetroni*, *Cory J. Albright*, and *Kyle Haskins*.

Mithun Mansinghani, Solicitor General of Oklahoma, argued the cause for respondent. With him on the brief were *Mike Hunter*, Attorney General of Oklahoma, *Jennifer Crabb*, Assistant Attorney General, *Bryan Cleveland* and *Randall Yates*, Assistant Solicitors General, *R. Reeves Anderson*, *Allon Kedem*, *Sally L. Pei*, and *Stephen K. Wirth*.

Deputy Solicitor General Kneedler argued the cause for the United States as *amicus curiae* urging affirmance. With him on the brief were *Solicitor General Francisco*, *Assistant Attorney General Clark*, *Erica L. Ross*, *William B. Lazarus*, and *James A. Maysonett*.*

*Briefs of *amici curiae* urging reversal were filed for Historians et al. by *L. Susan Work* and *Chrissi Ross Nimmo*; for the National Association of Criminal Defense Lawyers by *Jon M. Sands*, *Keith J. Hilzendeger*, and

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JUSTICE GORSUCH delivered the opinion of the Court.

On the far end of the Trail of Tears was a promise. Forced to leave their ancestral lands in Georgia and Alabama, the Creek Nation received assurances that their new lands in the West would be secure forever. In exchange for ceding “all their land, East of the Mississippi river,” the U. S. government agreed by treaty that “[t]he Creek country west of the Mississippi shall be solemnly guarantied to the Creek Indians.” Treaty With the Creeks, Arts. I, XIV, Mar. 24, 1832, 7 Stat. 366, 368 (1832 Treaty). Both parties settled on boundary lines for a new and “permanent home to the whole Creek nation,” located in what is now Oklahoma. Treaty With the Creeks, preamble, Feb. 14, 1833, 7 Stat. 418 (1833 Treaty). The government further promised that “[no] State or Territory [shall] ever have a right to pass laws for the government of such Indians, but they shall be allowed to govern themselves.” 1832 Treaty, Art. XIV, 7 Stat. 368.

Today we are asked whether the land these treaties promised remains an Indian reservation for purposes of federal

Barbara Bergman; for the National Indigenous Women’s Resource Center et al. by *Mary Kathryn Nagle*; and for Tom Cole et al. by *Robert H. Henry*, *Michael Burrage*, *Stephen H. Greetham*, *Frank S. Holleman IV*, *Douglas B. Endreson*, and *Brad Mallett*.

Briefs of *amici curiae* urging affirmance were filed for the State of Kansas et al. by *Derek Schmidt*, Attorney General of Kansas, *Toby Crouse*, Solicitor General, *Brant M. Laue*, Deputy Solicitor General, *Kurtis K. Wiard*, Assistant Solicitor General, and *Jeffrey A. Chanay*, Chief Deputy Attorney General, and by the Attorneys General for their respective States as follows: *Jeff Landry* of Louisiana, *Timothy C. Fox* of Montana, *Douglas J. Peterson* of Nebraska, and *Ken Paxton* of Texas; for the City of Tulsa by *Blaine H. Evanson*; for the Environmental Federation of Oklahoma, Inc., et al. by *Lynn H. Slade* and *Sarah M. Stevenson*; for the International Municipal Lawyers Association et al. by *Charles W. Thompson, Jr.*, *Amanda Kellar Karras*, and *Paul Koster*; for the National Congress of American Indians Fund by *John E. Echohawk* and *Colette Routel*; for Troy A. Eid et al. by *Dominic E. Draye*, *Jennifer H. Weddle*, and *Mr. Eid, pro se*; and for Seventeen Oklahoma District Attorneys et al. by *Robert D. Cheren*.

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criminal law. Because Congress has not said otherwise, we hold the government to its word.

I

At one level, the question before us concerns Jimcy McGirt. Years ago, an Oklahoma state court convicted him of three serious sexual offenses. Since then, he has argued in postconviction proceedings that the State lacked jurisdiction to prosecute him because he is an enrolled member of the Seminole Nation of Oklahoma and his crimes took place on the Creek Reservation. A new trial for his conduct, he has contended, must take place in federal court. The Oklahoma state courts hearing Mr. McGirt's arguments rejected them, so he now brings them here.

Mr. McGirt's appeal rests on the federal Major Crimes Act (MCA). The statute provides that, within "the Indian country," "[a]ny Indian who commits" certain enumerated offenses "against the person or property of another Indian or other person" "shall be subject to the same law and penalties as all other persons committing any of the above offenses, within the exclusive jurisdiction of the United States." 18 U.S.C. §1153(a). By subjecting Indians to federal trials for crimes committed on tribal lands, Congress may have breached its promises to tribes like the Creek that they would be free to govern themselves. But this particular incursion has its limits—applying only to certain enumerated crimes and allowing only the federal government to try Indians. State courts generally have no jurisdiction to try Indians for conduct committed in "Indian country." *Negonsott v. Samuels*, 507 U.S. 99, 102–103 (1993).

The key question Mr. McGirt faces concerns that last qualification: Did he commit his crimes in Indian country? A neighboring provision of the MCA defines the term to include, among other things, "all land within the limits of any Indian reservation under the jurisdiction of the United States Government, notwithstanding the issuance of any pat-

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ent, and, including rights-of-way running through the reservation.” § 1151(a). Mr. McGirt submits he can satisfy this condition because he committed his crimes on land reserved for the Creek since the 19th century.

The Creek Nation has joined Mr. McGirt as *amicus curiae*. Not because the Tribe is interested in shielding Mr. McGirt from responsibility for his crimes. Instead, the Creek Nation participates because Mr. McGirt’s personal interests wind up implicating the Tribe’s. No one disputes that Mr. McGirt’s crimes were committed on lands described as the Creek Reservation in an 1866 treaty and federal statute. But, in seeking to defend the state-court judgment below, Oklahoma has put aside whatever procedural defenses it might have and asked us to confirm that the land once given to the Creeks is no longer a reservation today.

At another level, then, Mr. McGirt’s case winds up as a contest between State and Tribe. The scope of their dispute is limited; nothing we might say today could unsettle Oklahoma’s authority to try non-Indians for crimes against non-Indians on the lands in question. See *United States v. McBratney*, 104 U. S. 621, 624 (1882). Still, the stakes are not insignificant. If Mr. McGirt and the Tribe are right, the State has no right to prosecute Indians for crimes committed in a portion of Northeastern Oklahoma that includes most of the city of Tulsa. Responsibility to try these matters would fall instead to the federal government and Tribe. Recently, the question has taken on more salience too. While Oklahoma state courts have rejected any suggestion that the lands in question remain a reservation, the Tenth Circuit has reached the opposite conclusion. *Murphy v. Royal*, 875 F. 3d 896, 907–909, 966 (2017). We granted certiorari to settle the question. 589 U. S. 1119 (2019).

II

Start with what should be obvious: Congress established a reservation for the Creeks. In a series of treaties, Con-

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gress not only “solemnly guarantied” the land but also “establish[ed] boundary lines which will secure a country and permanent home to the whole Creek nation of Indians.” 1832 Treaty, Art. XIV, 7 Stat. 368; 1833 Treaty, preamble, 7 Stat. 418. The government’s promises weren’t made gratuitously. Rather, the 1832 Treaty acknowledged that “[t]he United States are desirous that the Creeks should remove to the country west of the Mississippi” and, in service of that goal, required the Creeks to cede all lands in the East. Arts. I, XII, 7 Stat. 366, 367. Nor were the government’s promises meant to be delusory. Congress twice assured the Creeks that “[the] Treaty shall be obligatory on the contracting parties, as soon as the same shall be ratified by the United States.” 1832 Treaty, Art. XV, *id.*, at 368; see 1833 Treaty, Art. IX, 7 Stat. 420 (“agreement shall be binding and obligatory” upon ratification). Both treaties were duly ratified and enacted as law.

Because the Tribe’s move west was ostensibly voluntary, Congress held out another assurance as well. In the statute that precipitated these negotiations, Congress authorized the President “to assure the tribe . . . that the United States will forever secure and guaranty to them . . . the country so exchanged with them.” Indian Removal Act of 1830, §3, 4 Stat. 412. “[A]nd if they prefer it,” the bill continued, “the United States will cause a patent or grant to be made and executed to them for the same; *Provided always*, That such lands shall revert to the United States, if the Indians become extinct, or abandon the same.” *Ibid.* If agreeable to all sides, a tribe would not only enjoy the government’s solemn treaty promises; it would hold legal title to its lands.

It was an offer the Creek accepted. The 1833 Treaty fixed borders for what was to be a “permanent home to the whole Creek nation of Indians.” 1833 Treaty, preamble, 7 Stat. 418. It also established that the “United States will grant a patent, in fee simple, to the Creek nation of Indians for the land assigned said nation by this treaty.” Art. III, *id.*, at

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419. That grant came with the caveat that “the right thus guaranteed by the United States shall be continued to said tribe of Indians, so long as they shall exist as a nation, and continue to occupy the country hereby assigned them.” *Ibid.* The promised patent formally issued in 1852. See *Woodward v. De Graffenried*, 238 U. S. 284, 293–294 (1915).

These early treaties did not refer to the Creek lands as a “reservation”—perhaps because that word had not yet acquired such distinctive significance in federal Indian law. But we have found similar language in treaties from the same era sufficient to create a reservation. See *Menominee Tribe v. United States*, 391 U. S. 404, 405–406 (1968) (grant of land “for a home, to be held as Indian lands are held,” established a reservation). And later Acts of Congress left no room for doubt. In 1866, the United States entered yet another treaty with the Creek Nation. This agreement reduced the size of the land set aside for the Creek, compensating the Tribe at a price of 30 cents an acre. Treaty Between the United States and the Creek Nation of Indians, Art. III, June 14, 1866, 14 Stat. 786. But Congress explicitly restated its commitment that the remaining land would “be forever set apart as a home for said Creek Nation,” which it now referred to as “the reduced Creek reservation.” Arts. III, IX, *id.*, at 786, 788.¹ Throughout the late 19th century,

¹The dissent by THE CHIEF JUSTICE (hereinafter the dissent) suggests that the Creek’s intervening alliance with the Confederacy “‘unsettled’” and “‘forfeit[ed]’” the longstanding promises of the United States. *Post*, at 940. But the Treaty of 1866 put an end to any Civil War hostility, promising mutual amnesty, “perpetual peace and friendship,” and guaranteeing the Tribe the “quiet possession of their country.” Art. I, 14 Stat. 786. Though this treaty expressly reduced the size of the Creek Reservation, the Creek were compensated for the lost territory, and otherwise “retained” their unceded portion. Art. III, *ibid.* Contrary to the dissent’s implication, nothing in the Treaty of 1866 purported to repeal prior treaty promises. Cf. Art. XII, *id.*, at 790 (the United States expressly “reaffirms and reassumes all obligations of treaty stipulations with the Creek nation entered into before” the Civil War).